

an agent is bound to accept as correct the *trustees' statement as to the intended application of the fund (*a*).] But an agent who derives a *personal benefit* from the breach of trust of his principal will be accountable (*b*).

η. Sale before probate. — Though an executor *can* make an assignment and give a receipt for purchase-money before *probate*, yet a purchaser is not *bound to pay* his purchase-money before probate, which is the evidence of the executor's title (*c*).

[32. **Payment by order of executor.** — If a person indebted to a testator's estate pays a third party by order of the executor and obtains the executor's receipt without notice that the payment is wrongfully made, he thereby obtains a complete discharge (*d*).]

33. Who may impeach the sale. — Wherever, as in the several cases mentioned, there is suspicion of fraud, the transaction may be impeached by creditors (*e*), or specific (*f*), residuary (*g*), or even pecuniary legatees (*h*).

Effect of time. — But in no case will the Court grant re-

customer, or refuse to honour his draft on any other ground than some sufficient one resulting from the act of the customer himself, and that if a banker became incidentally aware that a trustee, his customer, meditated a breach of trust, and drew a cheque for that purpose, the banker had no right to refuse payment of the cheque, as this would be making himself party to an inquiry as between his customer and third persons. But that if a trustee being indebted to a banker, applied part of the trust estate in the banker's hands to the payment of the debt, the banker became *particeps criminis*, and was answerable. *Ib.* p. 14. It would seem, therefore, that, in Lord Westbury's opinion, if the trustee did not himself confess the breach of trust, the banker could not refuse payment on evidence *aliunde* that a breach of trust was intended; and see *Barnes v. Addy*, 9 L. R. Ch. App. 244.

[(*a*) *Rodbard v. Cooke*, 25 W. R. 555.]

(*b*) *Pannell v. Hurley*, 2 Coll. 241; *Bodenham v. Hoskyns*, 2 De G. M. & G. 903; [*Foxton v. Manchester and Liverpool District Banking Company*, 44 L. T. N. S. 400.]

(*c*) *Newton v. Metropolitan Railway Company*, 1 Dr. & Sm. 583.

[(*d*) *Ferrier v. Ferrier*, 11 L. R. Ir. 56; and see *ante*, p. 447.]

(*e*) *Crane v. Drake*, 2 Vern. 616; *Anon.* case cited, Pr. Ch. 434; and see *Nugent v. Gifford*, 1 Atk. 403; *Mead v. Orrery*, 3 Atk. 238.

(*f*) *Humble v. Bill*, 2 Vern. 444; *Scott v. Tyler*, 2 Dick. 712.

(*g*) See *Burting v. Stonard*, 2 P. W. 150; *Mead v. Orrery*, 3 Atk. 235, see 238; *M'Leod v. Drummond*, 17 Ves. 161, 169.

(*h*) *Hill v. Simpson*, 7 Ves. 152; and see *M'Leod v. Drummond*, 17 Ves. 169.